

24VECV00463 24VECV00463

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-08-17

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Case Number: 24VECV00463 Hearing Date: August 17, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

RBE

Capital Partners Fund LP,

v.

JH

Portfolio Debt Equities, LLC, et al.

Defendant.

Case Number Department

24VECV00463 107

COURT'S [TENTATIVE]

ORDER RE:

Application

and Order for Appearance

and

Examination (Kravetz)

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Grant

I.

BACKGROUND

On February 1, 2024, Plaintiff RBE Capital Partners Fund LP ("Plaintiff") filed a complaint against Defendants JH Portfolio Debt Equities, LLC, Norman J. Kravetz, Douglas C. Jacobsen, Realty Bancorp Equities, LLC, Warner World, LLC, and Does 1 through 20, alleging causes of action for: (1) breach of contract (promissory note); (2) money lent; (3) account stated; (4) breach of contract (guaranty); (5) money due; and (6) account stated.

On April 19, 2024, Cross-Complainants Norman J. Kravetz, Douglas C. Jacobsen, and Realty Bancorp Equities, LLC filed a cross-complaint against Cross-Defendants RBE Capital Partners Fund LP and Roes 1 through 20, alleging a usury cause of action.

On September 24, 2025, Plaintiff, Kravetz, Jacobsen, and Realty Bancorp Equities, LLC, stipulated to enter judgment in Plaintiff's favor and against Kravetz, Jacobsen, and Realty Bancorp Equities, LLC. (Stipulation for Entry of Judgment p. 2.) The court entered judgment based on that stipulation in Plaintiff's favor and against Kravetz, Jacobsen, and Realty Bancorp Equities, LLC in the sum of \$9,000,000.00. (Judgment.)

On

November 5, 2025, Plaintiff filed an application and order for appearance and examination

(the

"Application"). As of January 20, 2026, no opposition has been filed.

II.

LEGAL
STANDARD

“The judgment creditor may apply to the proper court for an order requiring the judgment debtor to appear before the court, or before a referee appointed by the court, at a time and place specified in the order, to furnish information to aid in enforcement of the money judgment.” (Code Civ. Proc., § 708.110, subd. (a).)

“If the judgment creditor has not caused the judgment debtor to be examined under this section during the preceding 120 days, the court shall make the order upon ex parte application of the judgment creditor.” (Code Civ. Proc., § 708.110, subd. (b).)

“If the judgment creditor has caused the judgment debtor to be examined under this section during the preceding 120 days, the court shall make the order if the judgment creditor by affidavit or otherwise shows good cause for the order. The application shall be made on noticed motion if the court so directs or a court rule so requires. Otherwise, it may be made ex parte.” (Code Civ. Proc., § 708.110, subd. (c).)

“Except as provided in section 708.111, the order shall contain the following statement in 14-point boldface type if printed or in capital letters if typed: ‘NOTICE TO JUDGMENT DEBTOR. If you fail to appear at the time and place specified in this order, you may be subject to arrest and punishment for contempt of court and the court may make an order requiring you to pay the reasonable attorney’s fees incurred by the judgment creditor in this proceeding.’” (Code Civ. Proc., § 708.110, subd. (e).)

Per
Local Rule 3.221, subdivision (a):

(1)

A natural person must be named on the order to appear for examination proceedings on behalf of a corporation, company, partnership or other business entity,

unless the court otherwise orders for good cause shown in a written declaration.

(2)

The clerk will give notice of the date and time for hearing.

(3)

A copy of the judgment must be provided with the application.

(4)

The application must be filed in the district in which the judgment was entered. If the courthouse where judgment was entered provides for judgment debtor's proceedings, the application for a debtor's proceeding must be filed in that courthouse. If not, the application must be filed in the courthouse where the district's supervising judge is located.

(Super. Ct. L.A. County, Local Rules, rule 3.221(a).)

"The judgment creditor shall personally serve a copy of the order on the judgment debtor not less than 30 days before the date set for the examination. Service shall be made in the manner specified in Section 415.10. Service of the order creates a lien on the personal property of the judgment debtor for a period of one year from the date of the order unless extended or sooner terminated by the court." (Code Civ. Proc., § 708.110, subd. (d).)

III.

DISCUSSION

Plaintiff used Judicial Council

Form AT-138/EJ-125, which includes the statutorily required notice.

(Application p. 2.) The Application names a natural person, Kravetz, as the person ordered to appear. (Application p. 1.) The Application states Kravetz is the judgment debtor. (Application p. 2.) The Application does not state the Kravetz has been examined within the past 120 days. (Application p. 2.)

The court entered judgment in Plaintiff's

favor and against Kravetz, Jacobsen, and Realty Bancorp Equities, LLC in the sum of \$9,000,000.00. (Judgment.) Plaintiff did not submit a copy of the judgment with the Application, but the judgment is on file with the court.

Plaintiff served Kravetz with the Application by personal service on November 19, 2025. (Proof of Service filed 11/24/25.) November 19, 2025, is more than 30 days before January 26, 2026. Thus, service was proper.

IV.

CONCLUSION

For the foregoing reasons, the Application is granted.

7Dated: August 1, 2026 _____ Hon.
Eric Harmon

Judge of the Superior Court